

DEFAULT DEADLINES (Calendar days unless noted)

MILESTONE	DEFAULT	FORM
EMD to Escrow	3 BUSINESS days	¶3D(1)
Loan Contingency	17 days	¶L(1)
Appraisal Contingency	17 days	¶L(2)
Inspection Contingency	17 days	¶L(3)
Insurance Contingency	17 days	¶L(4)
Review Seller Docs	17 days or 5 days after delivery	¶L(5)
Title (Prelim) Report	17 days or 5 days after delivery	¶L(6)
Escrow Instructions	5 days after delivery	¶N(2)
Seller Deliver Docs	7 days after acceptance	¶N(1)
HOA Docs Ordered	3 days after acceptance	¶N(3)
Smoke/CO/Water Heater	7 days after acceptance	¶N(4)
Final Walkthrough	5 days BEFORE COE	¶J/16
Standard COE	30 days (negotiable)	¶3B
Offer Expires	3 calendar days at 5PM	¶3C/32A
Remove Contingency	Written — C.A.R. Form CR-B	¶14

KEY DOLLAR RULES	
Liquidated damages cap	3% of purchase price (1-4 units)
Typical EMD range	1%–3% of purchase price
Home warranty max (seller)	\$625 ¶Q(18)
Civil penalty (wrongful cancel)	Up to \$1,000 — Civil Code §1031.9
Prorations calculated on	30-day month ¶17
POSSESSION RULES	
Default possession	6 PM on COE date upon record
Seller leaseback ≤29 days	C.A.R. Form SIP ¶3M(2)
Seller leaseback ≥30 days	C.A.R. Form RLAS ¶3M(2)
Tenant-occupied	C.A.R. Form TOPA ¶4A
DISPUTE RESOLUTION	
Step 1	Mediation — consumermediation.org
Step 2 (if initialed)	Binding Arbitration — waives jurisdiction

THE BIG 3 CONTINGENCIES — What They Protect & How to Remove

CONTINGENCY	¶ REF	PROTECTS BUYER FROM...	DEFAULT	HOW TO REMOVE
Financing	L(1)/8A	Losing deposit if loan is denied or falls through	17 days	C.A.R. Form CR-B — check loan contingency box
Appraisal	L(2)/8B	Being stuck buying if home appraises below offer price	17 days	C.A.R. Form CR-B — removal does NOT kill FHA/VA cancel rights
Inspection (Investigation)	L(3)/8C	Unforeseen property conditions found during inspection period	17 days	C.A.R. Form CR-B — after reviewing ALL inspection reports
Insurance	L(4)/8D	Being unable to get homeowner's insurance at a reasonable rate	17 days	C.A.R. Form CR-B — critical in CA wildfire areas
Review	L(6)/8F	Title defects, liens, easements found in Preliminary Report	5 days after delivery	C.A.R. Form CR-B — review prelim first

COST ALLOCATION · KEY FORMS · ALWAYS REMEMBER

EDR REALTY GROUP — RPA QUICK REFERENCE CARD

COST ALLOCATION DEFAULTS ¶Q		KEY C.A.R. FORMS		ALWAYS REMEMBER
NHD Report	Seller pays ¶Q(1)	CR-B	Remove buyer contingencies	EMD goes to...
Escrow fee	Each party pays own ¶Q(7)	NBP	Notice to Buyer to Perform	Remove contingencies
Owner's title insurance	Seller pays ¶Q(8)	NSP	Notice to Seller to Perform	Days = ...
Buyer's lender title policy	Buyer pays ¶Q(9)	DCE	Demand to Close Escrow (3 days)	Buyer agent is...
County transfer tax	Seller pays ¶Q(10)	CC	Cancellation of Contract	Presenting offer
HOA disclosure fee	Seller pays ¶Q(12)	RR	Request for Repair	Dual agency re...
HOA certification fee	Buyer pays ¶Q(13)	SIP	Seller In Possession (≤29 days)	AVID required
Home warranty (if seller)	Max \$625 ¶Q(18)	RLAS	Residential Lease After Sale (≥30 days)	Acceptance =
Smoke/CO compliance	Negotiated ¶Q(4)	TOPA	Tenant Occupied Property Addendum	Verbal agreem...
		AD	Agency Disclosure (give to YOUR buyer)	3% liquidated
		TDS	Transfer Disclosure Statement	TDS cancel rig...
		SPQ	Seller Property Questionnaire	
		FVAC	FHA/VA Amendatory Clause	
		IDA	Increased Deposit Addendum	